

CHAPTER 58.

An Act to amend the Law with respect to the salaries, superannuation, appointment, and powers of Resident Magistrates for the city of Belfast.

[16th December 1911.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) From and after the passing of this Act, the lord mayor, aldermen and citizens of the city of Belfast (in this Act referred to as "the Corporation") shall pay to each resident magistrate for the time being for the city a salary at the rate of two hundred pounds a year, by way of addition to the salary payable to him under the Resident Magistrates and Police Commissioners Salaries Act, 1874.

Additional salaries, pensions, and gratuities payable to resident magistrates for the city of Belfast by the Corporation, 37 & 38 Vict. c. 23.

(2) The additional salary payable to a resident magistrate under this section shall not be reckoned as part of his annual salary or emoluments for any of the purposes of the Superannuation Acts, 1834 to 1909, but in every case where under those Acts a superannuation or other allowance or gratuity is granted to a resident magistrate for the city of Belfast on his retiring or being removed from that office after the passing of this Act, the Corporation shall supplement the same by the grant of an additional allowance or gratuity of such an amount as will bear to the amount of the allowance or gratuity under those Acts the same proportion which the additional salary bears to the salary upon which the allowance or gratuity under those Acts is calculated.

(3) The provisions of the last preceding subsection with respect to the grant of an additional gratuity shall apply in every case where a gratuity under the Superannuation Acts, 1834 to 1909, is granted to the personal representatives of any resident magistrate for the city of Belfast who, after the passing of this Act, dies whilst holding that office or whilst in receipt of an additional allowance under the said subsection.

(4) The additional salaries, allowances, and gratuities payable under this section shall be paid at such times and in such manner as may be prescribed by the Lord Lieutenant, and shall be defrayed by the Corporation out of the general purposes rate.

(5) In the case of any resident magistrate for the city of Belfast holding office on the first day of January nineteen hundred and eleven, and also on the date of the passing of this Act, the additional salary shall commence and be payable as from the first day of January nineteen hundred and eleven.

Qualifications
for office.

2. No person shall, after the passing of this Act, be appointed to be a resident magistrate for the city of Belfast who is not, at the time of his appointment, a practising barrister or solicitor of not less than six years' standing or a resident magistrate.

Extension of
jurisdiction.

3. A resident magistrate for the city of Belfast, sitting alone at any place within the city appointed for holding petty sessions, shall, in addition to his other powers, have power to do alone any act and to exercise alone any jurisdiction which, under or in pursuance of any statute, may be done or exercised by two or more justices of the peace sitting in petty sessions at any such place.

Interpretation.
6 & 7 Will. 4.
c. 13.

4. In this Act the expression "resident magistrate" means a magistrate appointed under the Constabulary (Ireland) Act, 1836.

Short title.

5. This Act may be cited as the Resident Magistrates (Belfast) Act, 1911.